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Colonialism’s Racial Cast

In this way, the pre-Independence past continues to assert itself, so much so that courts of law are even now involved in remedying colonialism’s worst excesses. On 3 February 2016, some three-quarters of a century after Bhagat Singh and his comrades were hanged, the Lahore High Court in Pakistan was presented with a petition. Its purpose was to prove the innocence of this much-neglected freedom fighter, whose shadow lurked in the faded memories of all those who lived during the pre-Independence years and even immediately thereafter. The monumental news was excitedly reported on the Indian side of the border a week before the event on 31 January 2016, by NDTV, the Indian news channel. It explained how Chief Justice Ijazul Ahsan had constituted a bench headed by Khalid Mahmood Khan. In fact, unknown to the public at large on both sides of the Indo–Pak border, interest in Bhagat Singh appears to have been long-standing in Pakistan because in May 2013 the petition had been heard by Shujaat Ali Khan, and it was he who had then referred the matter to the chief justice so that it could be heard by a larger bench.

Thereafter, Advocate Imtiaz Rashid Qureshi, as chairman of the Bhagat Singh Memorial Foundation, filed a plea for the matter to be expedited in November 2013. It was shortly after the filing of this petition that the Lahore Police in 2014 provided the copy of the first information report (FIR)[1] on the killing of Saunders in 1928 to the petitioner on the court’s order,[2] which showed that when the FIR was registered at the Anarkali Police Station in Lahore on 17 December 1928 at 4.30 p.m., it referred to only two ‘unknown gunmen’ and made no reference to Bhagat Singh by name, for which a case against them was registered under Sections 302,